

The motion is **GRANTED**. Plaintiff shall provide verified responses without objections to Requests for Production, Set One within 30 days.

No sanctions were requested and therefore no sanctions are awarded.

MOTION TO DEEM ADMITTED

Code of Civil Procedure section 2033.280 provides that if a party to whom requests for admission are directed fails to serve a timely response, the party waives any objection to the requests. (Code Civ. Proc., § 2033.280.) The requesting party may also move for an order that the genuineness of documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280. subds. (a)-(b).)

The court shall deem the matters admitted unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. (Code Civ. Proc., § 2033.280, subd. (c).) Monetary sanctions are mandatory against the party or attorney who necessitated the motion unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (*Ibid.*)

Here, the discovery at issue was served on 01/02/2025. Plaintiff has not provided any responses.

Unless Plaintiff provides verified responses to Requests for Admission, Set One before the hearing on the motion, the motion will be **GRANTED** and Requests for Admission, Set One will be deemed admitted against Plaintiff.

No sanctions were requested and therefore no sanctions are awarded.

Defendant to give notice.

9. 30-2025-01527789

Tai Fung Bank Limited
vs. Hui

1. Case Management Conference
2. Motion-Other
(for Issuance of Letters Rogatory for Service of Cross-Complaint)
3. Motion to Compel Deposition (Oral or Written)
4. Motion to Dismiss

Motion to Dismiss Cross-Complaint:

Plaintiff/cross-defendant Tai Fung Bank Unlimited (“Tai Fung”) moves for an order dismissing the Cross-Complaint of defendant/cross-complainant Shen Hui (“Shen”) pursuant to the doctrine of forum non conveniens and the existence of an exclusive forum selection clause. Alternatively, Tai Fung requests a finding that each claim asserted in Shen’s Cross-Complaint fails to state sufficient facts to constitute a cause of action.

“ ‘In a contract dispute in which the parties’ agreement contains a forum selection clause, a threshold issue in a forum non conveniens motion is whether the forum selection clause is mandatory or permissive.’ ” (*Korman v. Princess Cruise Lines, Ltd.* (2019) 32 Cal.App.5th 206, 215.) “A clause is mandatory if it requires the parties to litigate their disputes exclusively in the designated forum, and it is permissive if it merely requires the parties to submit to jurisdiction in the designated forum. A permissive forum selection clause is subject to traditional forum non

conveniens analysis to determine whether the designated forum is a suitable alternative forum and whether the balancing of various private and public interest factors favors retaining the action in California. These traditional forum non conveniens factors are not considered when a mandatory forum selection clause exists.” (*Verdugo v. Alliantgroup, L.P.* (2015) 237 Cal.App.4th 141, 147, fn. 2 [internal citations omitted].)

“ ‘When a case involves a mandatory forum selection clause, it will usually be given effect unless it is unfair or unreasonable. [Citation.]’ ‘Both California and federal law presume a contractual forum selection clause is valid and place the burden on the party seeking to overturn the forum selection clause. [Citations.]’ ‘It is well settled that parties may contract in advance to select the forum in which their disputes will be adjudicated. [Citation.]’ ” (*Korman, supra*, 32 Cal.App.5th at p. 216 [internal citations omitted].)

“ ‘In the context of forum selection clauses, enforcement is considered unreasonable where “the forum selected would be unavailable or unable to accomplish substantial justice” or there is no “rational basis” for the selected forum. [Citation.]’ ” (*Korman, supra*, 32 Cal.App.5th at p. 216 [internal citations omitted].) “ ‘ ‘ ‘Mere inconvenience or additional expense is not the test of unreasonableness . . . ’ ” for a mandatory forum selection clause. [Citation.]’ [Citation.] A clause is reasonable if it has a logical connection with at least one of the parties or their transaction.” (*Verdugo, supra*, 237 Cal.App.4th at p. 147.)

Shen’s Cross-Complaint arises out of Shen’s personal guaranty of a loan made by Tai Fung to WM Group. Shen alleges he was induced to enter into the guaranty by Cross-Defendants’ misrepresentations. Section 14.1 of the guaranty provides, in relevant part:

- (b) The courts of Hong Kong have exclusive jurisdiction to settle any dispute arising out of or in connection with this Guarantee (including a dispute regarding the existence, validity or termination of this Guarantee) (a “Dispute”).

Section 14.1(d) goes on to provide that “the Lender shall not be prevented from taking proceedings relating to a Dispute in any other courts with jurisdiction. To the extent allowed by law, the Lender may take concurrent proceedings in any number of jurisdictions.”

Section 14.1(b) presents a mandatory forum selection clause which designates Hong Kong as the exclusive jurisdiction to settle Shen’s disputes against Cross-Defendants regarding the guaranty. This clause must be enforced unless Shen meets his burden to show enforcement would be unfair or unreasonable.

Shen argues the provision should not be enforced the contract is asymmetrical and allows Tai Fung to sue in any other court with jurisdiction and to maintain concurrent proceedings, whereas Shen is limited to only courts in Hong Kong. Shen argues that Tai Fung cannot simultaneously be permitted to seek affirmative relief in its own action while dismissing Shen’s related crossclaims based on its one-sided portrayal of the same contractual provisions.

Shen cites *Trident Labs, Inc. v. Merrill Lynch Commercial Finance Corp.* (2011) 200 Cal.App.4th 147 in support. While *Trident* involved a forum selection clause that, similar to here, had a mandatory forum selection clause as to the borrower but allowed the lender the discretion to enforce the loan documents in other jurisdictions, the *Trident* court held that the clause was unenforceable due to the lender’s decision to extensively litigate in the original forum, not to any asymmetry or unconscionability of the clause. (200 Cal.App.4th at p. 155.) Here, Tai Fung has not

chosen to extensively litigate Shen's crossclaims and has not sat on its right to seek enforcement of the forum selection clause, as in *Trident*. Thus, *Trident* does not support Shen's argument.

Further, Shen's argument that dismissal should not be granted because Tai Fung has filed its own action in California seeking affirmative relief is also unpersuasive, as Tai Fung's filing of its action for recognition of the Hong Kong judgment in California was based solely on the fact that California has personal jurisdiction over Shen as a resident of Orange County. There is nothing inherently unconscionable or unreasonable in allowing Tai Fung to attempt to enforce its Hong Kong judgment here, where Shen resides, while also enforcing the mandatory forum selection clause against Shen's claims.

Shen also argues dismissal would be premature because the provision is potentially unconscionable and targeted discovery into the enforceability of the agreement and whether it was freely and voluntarily entered into by him must be conducted. Shen asserts that he was to sign signature the contract without complete finalized copies or independent counsel. Shen's argument that discovery into the unconscionability of the contract falls flat, as facts regarding whether Shen freely and voluntarily agreed to the contract are already within his own knowledge and no additional discovery is needed for Shen to set forth any facts regarding the execution of the guaranty that could support a finding of unconscionability. Further, while Shen alleges that the loan to WM Group and his guarantee of that loan were part of a bundled transaction involving other agreements, this does not negate the fact that his Cross-Complaint, which expressly seeks rescission of the guaranty, arises out of or is connected to the guaranty contract that contains the forum selection clause. Thus, the Court finds that additional discovery is unwarranted.

In light of the above, the Court finds Shen has failed to show that enforcement of the mandatory forum selection clause would be unreasonable or unfair. Thus, the clause must be enforced and the **Motion to Dismiss is GRANTED.**

Moving party to give notice.

Motion to Compel Deposition; Motion Directing Issuance of Two Separate Letters Rogatory of the People's Republic of China

Defendant/cross-complainant Shen Hui ("Shen") moves for an order compelling plaintiff/cross-defendant Tai Fung Bank Unlimited ("Tai Fung") Tai Fung to produce David Jian Wei Shen and Justin Ho King Man for deposition. Shen separately moves for an order authorizing and directing the issuance of two separate Letters Rogatory to the People's Republic of China for the purpose of effecting service of the Summons and Cross-Complaint on Cross-Defendants residing in Beijing, China.

Motion to Compel Deposition

Shen served Notices of Deposition of David Jian Wei Shen and Justin Ho King Man with each deposition to take place in Newport Beach, California. Shen concedes that the Court cannot compel these deponents, who live in a foreign country, to attend a deposition in California and that the Notices of Deposition are therefore ineffective.

Shen asks the Court to compel the deponents' appearance at their depositions in person in Macao or Hong Kong or remotely by videoconference. While Code of Civil Procedure section 2027.010 allows a party to take a deposition in a foreign nation, it also states that the procedures for taking oral depositions in California, which require the valid service of a deposition notice, apply to such deposition. (Code Civ. Proc., § 2027.010(a).) Without having served any valid deposition notice for

		the requested depositions to take place in Macao or Hong Kong, Shen’s requested relief is denied. In short, Shen cannot seek to compel discovery that he has not sought in a manner that complies with the Code. Alternatively, Shen asks that the Court order Tai Fung to designate David Shen and Justin Man as its persons most qualified on any topic. Shen cites no authority showing that this requested relief is proper or warranted. Shen has not attached any deposition notice served on Tai Fung that would require Tai Fung to designate a person most knowledgeable on specified topics or issues. Thus, this request is rejected. In light of the above, the Motion to Compel Deposition is DENIED. <u>Motion re: Issuance of Letters Rogatory for Service of Cross-Complaint</u> Shen requests the issuance of letters rogatory for service of the Cross-Defendants who reside in China pursuant to Code of Civil Procedure section 413.10(c). Section 413.10 provides that a summons may be served on a person outside the United States as directed by the foreign authority in response to a letter rogatory, if the court finds that the service is reasonably calculated to give actual notice. The section expressly states that these rules are subject to the Hague Service Convention. Letters rogatory are “formal request[s] from a court in which an action is pending, to a foreign court to perform some judicial act.” (22 C.F.R. § 92.54.) China is a signatory to the Hague Service Convention but has opposed Articles 10(b) and (c), which allow for service to be effected directly through judicial officers, officials, or other competent persons or any person interested in a judicial proceeding to effect service directly through the judicial officers, officials, or other competent persons. Shen’s request for letters rogatory fall within Articles 10(b) and (c) and because China has opposed those Articles, the request is improper. Instead, Shen must serve the foreign Cross-Defendants through China’s designated Central Authority in accordance with the Hague Convention. Thus, the Motion is DENIED. Moving party to give notice.
10.	30-2025-01518369 Chadwick vs. General Motors, LLC	1. Motion for Attorney Fees Plaintiffs Karyssa and Jeffrey Chadwick (“Plaintiffs”) move for an order awarding them attorney fees pursuant to Civil Code section 1794(d), in the amount of \$14,665, along with costs/expenses of \$648.48, plus a lodestar multiplier of 20% (\$2,933) against defendant General Motors LLC (“Defendant”). Civil Code section 1794(d) states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” “As the plain wording of section 1794, subdivision (d) makes clear, the trial court is ‘to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.’ ” (<i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 247.) “Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended